BRENDAN NGEHSI NEWANFORBI
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Plaintiff and Petitioner, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SAN JOAQUIN

BRENDAN NGEHSI NEWANFORBI, Plaintiff and Petitioner, v. **GLENN URREA, individually and in his official capacity; GARY NOGUCHI, individually and in his official capacity; JEFF MACOMBER, in his official capacity; BRYAN BISHOP, in his official capacity; CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION; and DOES 1 through 10, inclusive,** Defendants and Respondents.	Case No. _____ **VERIFIED PETITION FOR WRIT OF MANDATE AND COMPLAINT** (1) Writ of Mandate (CCP § 1085); (2) Declaratory Relief (CCP § 1060); (3) Injunctive Relief; (4) Violation of Cal. Const. Art. I, § 13; (5) Violation of Cal. Const. Art. I, § 7; (6) Tom Bane Civil Rights Act (Civ. Code § 52.1); (7) False Imprisonment; (8) Intentional Infliction of Emotional Distress; (9) Negligent Violation of Mandatory Duty (Gov. Code § 815.6). **[TRIAL BY COURT — JURY WAIVED]**

INTRODUCTION

1. Plaintiff and Petitioner BRENDAN NGEHSI NEWANFORBI ("Plaintiff") brings this action to challenge a systemic pattern and practice by the California Department of Corrections and Rehabilitation ("CDCR") of imposing and enforcing parole conditions that lack the constitutionally required nexus to a parolee's commitment offense—and then leveraging those facially invalid conditions to manufacture detention without probable cause, due process, or judicial oversight.

2. This action arises from—and seeks to prevent the recurrence of—a five-day unlawful detention imposed on Plaintiff on or about November 1-6, 2024, when Defendant GLENN URREA placed a parole hold on Plaintiff at the precise moment Plaintiff was otherwise eligible for release from custody on an unrelated DUI booking. The hold was predicated on a purported violation of Special Condition No. 063, a categorical "Halloween curfew" imposed without any individualized nexus to Plaintiff's commitment offense—which involved an adult victim and bore no connection whatsoever to Halloween, minors, or holiday-related conduct.

3. The unconstitutionality of CDCR's practice has been clearly established for decades. *People v. Lent* (1975) 15 Cal.3d 481 requires every parole condition to bear a rational nexus to the offender's crime or future criminality. *In re Ricardo P.* (2019) 7 Cal.5th 1113 reaffirmed and tightened that requirement. Yet CDCR continues to impose Special Condition No. 063 on PC § 290 registrants categorically, without individualized assessment, and to enforce it through statewide "Operation Boo" detention sweeps. Plaintiff's detention was not an isolated clerical error—it was the foreseeable product of policy.

4. Plaintiff remains on parole supervision into 2026 and beyond. Special Condition No. 063 has not been removed from his Conditions of Parole. Defendants' "Operation Boo" is an annual enforcement event. Absent declaratory and injunctive relief, Plaintiff faces a concrete and ongoing risk of repeated arbitrary detention every Halloween season.

5. Plaintiff seeks: (a) a writ of mandate compelling CDCR to remove Special Condition No. 063 from Plaintiff's Conditions of Parole or, in the alternative, to conduct and document an individualized nexus determination; (b) declaratory relief that Defendants' conduct violated the California Constitution and California statutory law; (c) prospective injunctive relief requiring CDCR to implement constitutionally adequate procedures governing the imposition and enforcement of special parole conditions and parole holds; (d) damages under the Tom Bane Civil Rights Act and California common law for the unlawful detention; and (e) attorney's fees, costs,

and other appropriate relief.

JURISDICTION AND VENUE

6. This Court has subject-matter jurisdiction over this action under Article VI, Section 10 of the California Constitution and Code of Civil Procedure §§ 410.10, 1060, and 1085.

7. Venue is proper in San Joaquin County under Code of Civil Procedure § 395(a) because this action arises out of the imposition and ongoing enforcement of Special Condition No. 063 against Plaintiff in San Joaquin County, where Plaintiff resides and is under active parole supervision. Plaintiff remains subject to "Operation Boo" enforcement in San Joaquin County each year, and the prospective harm and ongoing violation of his constitutional rights are centered in San Joaquin County. The continuing imposition and enforcement of Special Condition No. 063 by CDCR personnel supervising Plaintiff in San Joaquin County constitutes a substantial part of the wrongful conduct and the prospective harm to which the requested writ, declaratory, and injunctive relief is directed. Additionally, venue is proper in Sacramento County under Code of Civil Procedure § 393(b) because the underlying policy and practice giving rise to this action—"Operation Boo" and the categorical imposition of Special Condition No. 063 on PC § 290 registrants—were formulated, ratified, and are enforced at CDCR headquarters in Sacramento County. Defendant JEFF MACOMBER, Secretary of CDCR, and Defendant BRYAN BISHOP, Director of the Division of Adult Parole Operations, both maintain their official offices in Sacramento County. Plaintiff respectfully elects San Joaquin County as the forum, where the concrete and ongoing harm to his liberty occurs.

PARTIES

Plaintiff

8. Plaintiff BRENDAN NGEHSI NEWANFORBI is a natural person and a resident of San Joaquin County, California. Plaintiff is currently and was at all relevant times subject to parole supervision under the authority of CDCR's Division of Adult Parole Operations.

Defendants

9. Defendant CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION ("CDCR") is a department of the State of California. CDCR is a "public entity" within the meaning of California Government Code § 811.2 and is vicariously liable for the acts of its employees committed within the scope of their employment under Government Code § 815.2. CDCR maintains and enforces the policies, customs, and practices that produced the constitutional and statutory violations alleged herein.

10. Defendant JEFF MACOMBER is the Secretary of CDCR. As Secretary, Macomber has final policymaking authority over CDCR's policies, practices, and customs, including the imposition and enforcement of special parole conditions, the operation of "Operation Boo," and the procedures (or absence thereof) governing parole holds. Macomber is sued in his official capacity for prospective declaratory and injunctive relief.

11. Defendant BRYAN BISHOP is the Director of CDCR's Division of Adult Parole Operations ("DAPO"). As Director, Bishop has operational authority over DAPO's statewide parole supervision activities, the issuance and enforcement of special parole conditions, the conduct of compliance operations including "Operation Boo," and the placement of parole holds. Bishop is sued in his official capacity for prospective declaratory and injunctive relief.

12. Defendant GLENN URREA ("Urrea") is, and at all relevant times was, a parole agent employed by CDCR's Division of Adult Parole Operations. Urrea placed the parole hold that overrode Plaintiff's scheduled release on November 1, 2024. Urrea is sued in his individual

capacity for damages and in his official capacity for prospective declaratory and injunctive relief.

13. Defendant GARY NOGUCHI ("Noguchi") is, and at all relevant times was, a Unit Supervisor employed by CDCR. On or about August 5, 2025, Noguchi approved Plaintiff's Special Conditions of Parole, including Special Condition No. 063 (the Halloween curfew), without conducting or documenting any individualized nexus assessment. Noguchi is sued in his individual capacity for damages and in his official capacity for prospective declaratory and injunctive relief.

14. Defendants DOES 1 through 10, inclusive, are individuals or entities whose true identities are presently unknown to Plaintiff. Plaintiff is informed and believes, and on that basis alleges, that each Doe defendant participated in, ratified, directed, implemented, or failed to correct the policies, customs, practices, decisions, or acts giving rise to this action. Plaintiff will amend this Complaint to substitute the true names of the Doe defendants when their identities are ascertained.

15. At all relevant times, each individual Defendant acted under color of state law and within the course and scope of his or her employment with CDCR.

COMPLIANCE WITH THE GOVERNMENT CLAIMS ACT

16. On May 13, 2026, Plaintiff presented a written claim to the State of California Government Claims Program in compliance with Government Code §§ 905.2, 910, and 915, asserting the claims pleaded herein and identifying the constitutional, statutory, and common-law violations described in this Complaint. A true and correct copy of the claim is attached hereto as **Exhibit A** and incorporated by reference.

17. Pursuant to Government Code § 912.4, if a public entity fails to act on a claim within

forty-five (45) days after presentation, the claim is deemed to have been rejected on the forty-fifth day. As of the date of execution of this Complaint, the forty-five day period has expired and Plaintiff's claim is therefore deemed rejected by operation of law, or, in the alternative, has been rejected in writing.

18. Plaintiff further alleges, in the alternative and to the extent any portion of his claims is asserted to have accrued more than six months before May 13, 2026, that: (a) the harms alleged constitute a *continuing violation* because Special Condition No. 063 remains in force, "Operation Boo" is an annual statewide enforcement event, and Plaintiff is exposed to ongoing risk of repeated detention with each enforcement cycle; (b) discrete enforcement acts and parole-supervision decisions occurring within six months of May 13, 2026 are timely; and (c) Plaintiff's claims for declaratory, injunctive, and writ relief are not subject to the Government Claims Act's presentation requirement under settled authority, including *Loehr v. Ventura County Community College Dist.* (1983) 147 Cal.App.3d 1071.

19. Plaintiff has exhausted all administrative remedies that are required, available, and adequate, or, in the alternative, no such administrative remedies are required, available, or adequate.

FACTUAL ALLEGATIONS

A. Plaintiff's Commitment Offense and the Critical Absence of Nexus

20. Plaintiff was convicted of a felony offense in January 2018 and sentenced to six years in state prison. Plaintiff's commitment offense involved an adult victim.

21. Plaintiff's commitment offense had no connection whatsoever to Halloween, Halloween activities, trick-or-treating, costumes, candy, decorations, minors approaching

residences, or any holiday-specific scenario. Plaintiff's criminal history contains no offenses involving minors, no offenses involving children, and no offenses with any connection to Halloween-related conduct.

22. Plaintiff is required to register pursuant to California Penal Code § 290. Registration status alone does not automatically authorize the imposition of any and all sex-offender-related parole conditions. California law—and CDCR's own forms—require that special parole conditions be reasonably related to the parolee's commitment offense, criminal conduct, and/or future criminality. *See People v. Lent* (1975) 15 Cal.3d 481; *In re Ricardo P.* (2019) 7 Cal.5th 1113; 15 Cal. Code Regs. § 2616.

23. The distinction between sex offenses involving minors and those involving adults is constitutionally and regulatorily significant. A Halloween curfew—designed to prevent contact with children during trick-or-treating hours—has a rational basis only for offenders whose histories involve minors. Applying such a condition to an offender whose offense involved an adult victim, without individualized assessment, is arbitrary, pretextual, and unlawful.

B. Special Condition No. 063 and Its Facial Invalidity As Applied

24. On or about August 4-5, 2025, CDCR imposed updated Special Conditions of Parole on Plaintiff (CDC No. BF3571), which were approved and signed by Defendant Noguchi on August 5, 2025. Special Condition No. 063 was also previously imposed on Plaintiff no later than November 19, 2020, as part of pre-release procedures at California Health Care Facility, demonstrating the condition's long-standing categorical application without documented nexus.

25. Special Condition No. 063 (the "Halloween curfew") states, in full: *"You shall observe the following curfew on Halloween 5:00 p.m. to 5:00 a.m. and remain within your approved residence or location determined by your Agent of Record. The exterior lights of your approved*

residence or location shall remain off for the duration of the Halloween curfew. You shall not participate or engage in Halloween activities (e.g., trick or treating, offering of Halloween candy, decorations, or parties). In addition, during the Halloween curfew, you shall not open the door of your residence to any persons with the exception of law enforcement personnel, adult family members, or emergency needs."

26. Special Condition No. 063 was assigned Reason Code 08 on the form. According to CDCR's own "Reasons for Special Conditions of Parole" table on the same form, Reason Code 08 is defined as: *"Based on behavior displayed by offenders convicted of similar crimes, or displaying similar criminal behavior, imposition of this condition may regulate conduct that is not in itself criminal, but rather reasonably related to future criminality."*

27. The same CDCR form further articulates the legal standard governing all special conditions: *"Special conditions can be imposed if there is a nexus or the conditions reasonably related to the subject's commitment offense, criminal conduct, and/or future criminality. A special condition that bars lawful activity is valid only if the prohibited conduct either: 1. Has a relationship to the crime of which the offender was convicted. 2. Is reasonably related to deter future criminality."*

28. Because Reason Code 08 expressly references "similar crimes" or "similar criminal behavior," and because Plaintiff's commitment offense involved an adult victim in a non-holiday context, the imposition of Special Condition No. 063 was not merely a discretionary error—it was a violation of the plain text of CDCR's own regulatory framework, rendering the condition facially invalid as applied to Plaintiff.

29. Defendant Noguchi, as the approving Unit Supervisor, performed the ministerial act of authorizing a facially invalid condition without conducting or documenting the required individualized nexus assessment. Noguchi's approval created the instrumentality—a void

condition—later used to effectuate Plaintiff's unlawful seizure.

C. Plaintiff's Lawful Activity on October 31, 2024

30. On October 31, 2024, Plaintiff attended a concert in Oakland, California. Plaintiff was engaged in lawful activity at an adult entertainment venue. Plaintiff was not at his residence, was not interacting with trick-or-treaters, was not in proximity to minors, and was not engaged in any activity that Special Condition No. 063 purported to regulate.

D. DUI Arrest, Booking, and the Moment of Releasability

31. In the early morning hours of November 1, 2024, Plaintiff was arrested by the California Highway Patrol on suspicion of driving under the influence and transported to Santa Rita Jail in Dublin, California.

32. Plaintiff was booked into Santa Rita Jail and placed in a holding tank pending processing of his release.

33. Later that morning, on November 1, 2024, jail personnel informed Plaintiff that he was otherwise eligible for release from custody on the DUI arrest. Jail personnel further informed Plaintiff that his DUI-related custody was ending and that he would be released.

34. At approximately 10:30 a.m. on November 1, 2024, a correctional officer informed Plaintiff: "There has been a prior hold that's been placed on you." This was the first and only notice Plaintiff received of the parole hold.

35. At the moment jail personnel informed Plaintiff he was otherwise releasable, Plaintiff's right to liberty vested. The CHP and/or jail officials had already processed Plaintiff's

release paperwork for the DUI before the parole hold overrode it. No judicial order authorized Plaintiff's continued detention. No new criminal charge was filed at that time to justify continued custody. No warrant was issued.

36. The parole hold placed by Defendant Urrea constituted a new seizure of Plaintiff's person. It was imposed at the precise moment of Plaintiff's scheduled release and functioned as the sole but-for cause of Plaintiff's continued confinement. The hold was not a continuation of the DUI arrest but a distinct act of restraint imposed by parole authorities at the precise moment when no judicial order, warrant, or lawful basis for detention existed.

37. Plaintiff was not provided paperwork identifying the author of the hold, the factual basis for the hold, the specific condition allegedly violated, any evidence supporting the alleged violation, or any opportunity to challenge it.

38. Following notification of the parole hold on November 1, 2024, Plaintiff was processed into a jail housing unit rather than being released. Plaintiff remained confined at Santa Rita Jail with a dangerous cellmate who menaced and intimidated Plaintiff for the duration of Plaintiff's time in custody. Plaintiff feared for his safety and endured psychological strain and hypervigilance throughout the confinement.

E. Court Appearance, Charging Deadline, and Overridden Release

39. On November 5, 2024, Plaintiff was transported to the courthouse and held in a cold, dingy holding tank for an entire day pending a court appearance.

40. Plaintiff did not appear before a judge. Plaintiff received no judicial review of the parole hold.

41. At approximately 3:30 p.m. on or about November 5, 2024, correctional officers told Plaintiff, in substance: "The judge said the District Attorney has until 4:30 p.m. today to press charges on you. If not, they must release you today."

42. The 4:30 p.m. deadline on November 5, 2024, passed without the District Attorney filing charges. At that moment, no lawful basis existed for Plaintiff's continued detention on the DUI arrest.

43. Despite the passage of that timeframe without charges being filed, Plaintiff was not released because the parole hold continued to override the release that would otherwise have occurred. The parole hold functioned as an administrative veto of Plaintiff's entitlement to liberty. At no point did any neutral judicial officer ratify, review, or authorize the parole hold as a lawful basis for continued custody.

F. Five Days of Arbitrary Detention

44. Plaintiff remained incarcerated from November 1 through November 6, 2024—five days of continuous confinement based solely on the parole hold.

45. During this period, Plaintiff received: no written notice of the specific parole condition allegedly violated; no disclosure of the evidence against him; no preliminary probable-cause hearing; no opportunity to appear before a neutral decision-maker; no written statement of reasons for continued detention; and no opportunity to contest either the validity of the underlying Halloween curfew condition or its application to him.

46. Plaintiff repeatedly attempted to resolve the hold and obtain release, including contacting multiple bail bond companies. Plaintiff was forced into a desperate posture: calling outward for help to undo a hold whose basis was not disclosed and whose continuation was not

justified.

47. Plaintiff was ultimately released on November 6, 2024, only after one bail bond company contacted the jail and informed jail personnel that the hold had been lifted. No CDCR official proactively notified Plaintiff of the hold's termination. Plaintiff's release occurred not because due process worked, but because an outside party intervened.

G. Employment Jeopardy and Economic Harm

48. Plaintiff was scheduled to begin employment as a commercial truck driver with Centerline Drivers on the evening of November 1, 2024. This was Plaintiff's first day with a new employer. Plaintiff's position required a valid CDL and medical card, paid $33.35 per hour regular rate and $50.03 per hour premium rate, and was subject to DOT regulations.

49. Plaintiff's unlawful detention prevented him from reporting to work on his first scheduled shift and on subsequent scheduled shifts on November 4, 5, and 6, 2024. Plaintiff suffered direct economic loss in the form of lost wages ranging from approximately $1,534 to $2,301, and suffered additional reputational and professional harm in the commercial transportation industry, where reliability and background clearances are critical.

H. The Halloween Condition Was Used as a Detention-Triggering Device

50. The purported Halloween curfew was not enforced as a supervisory condition designed to facilitate rehabilitation or protect public safety. It was instead used as a detention-triggering mechanism to override release and manufacture incarceration. There is no rational supervisory justification for jailing a parolee whose offense involved an adult victim for five days based on his presence at a concert on Halloween night. The condition was applied categorically—as part of a blanket "Operation Boo" enforcement sweep—rather than based on

any individualized risk assessment.

51. Defendant Urrea knew or should have known that: Plaintiff was otherwise releasable; no judge had ordered detention; no charges had been filed; the Halloween curfew condition lacked nexus to Plaintiff's commitment offense (which involved an adult victim); and using the hold to override release and extend incarceration based on a non-nexus condition was unlawful. Defendant Urrea acted with punitive intent rather than supervisory intent by waiting until the moment of Plaintiff's release to invoke a hold based on a condition he knew or should have known lacked any nexus to the offense.

I. Ongoing Threat and Systemic Policy Failures

52. Plaintiff remains on parole supervision and remains subject to parole holds and special conditions. Plaintiff's parole supervision continues into 2026 and beyond. Special Condition No. 063 has not been removed from Plaintiff's Conditions of Parole. Each Halloween enforcement cycle exposes Plaintiff to renewed risk of arbitrary detention under the same condition that lacks nexus to his offense.

53. CDCR, under the policymaking authority of Defendant Macomber and the operational authority of Defendant Bishop, maintains an annual statewide enforcement operation known as "Operation Boo," which mandates blanket curfews and holiday-specific restrictions on PC § 290 registrants without regard to the specific nexus requirements of *People v. Lent* and *In re Ricardo P.* "Operation Boo" directives are enforced through parole compliance mechanisms that expressly include detention holds, not merely field supervision.

54. CDCR's policy lacks a mandatory "nexus-check" mechanism—a procedural step requiring an agent or supervisor to certify that a holiday-specific condition is related to the parolee's specific commitment offense before a hold can be authorized. Defendant Macomber's

failure to implement basic constitutional safeguards—such as mandatory pre-hold supervisory nexus review, a written nexus-verification step, or a system for prompt neutral review of holds that override release—constitutes deliberate indifference. This systemic lack of procedure is itself the policy.

55. Plaintiff's detention was not an isolated incident but the inevitable, foreseeable product of CDCR's pattern and practice. Absent court intervention, Plaintiff and similarly situated parolees will continue to face the same risk of arbitrary holiday-based detention with each enforcement cycle.

CAUSES OF ACTION

FIRST CAUSE OF ACTION

Petition for Writ of Mandate (CCP § 1085)

(Against CDCR, Macomber, Bishop, Urrea, and Noguchi in Their Official Capacities)

56. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

57. Code of Civil Procedure § 1085 authorizes the issuance of a writ of mandate to compel the performance of an act that the law specifically enjoins as a duty resulting from a public office. *Friends of the Trinity River v. North Coast Regional Water Quality Control Bd.* (2010) 184 Cal.App.4th 1466.

58. Defendants have a clear, present, and ministerial duty under California Penal Code § 3053, 15 California Code of Regulations § 2616, and the controlling decisions in *People v. Lent* and *In re Ricardo P.*, to ensure that every special condition of parole imposed on a parolee bears a

documented, individualized nexus to that parolee's commitment offense, criminal conduct, or future criminality. This duty is non-discretionary in its core: while the substantive judgment of nexus may involve discretion, the duty to make and document the determination at all is ministerial.

59. Defendants have failed and continue to fail in this duty by imposing and enforcing Special Condition No. 063 on Plaintiff without any individualized nexus determination, and by maintaining a system in which Special Condition No. 063 is categorically imposed on PC § 290 registrants regardless of whether their offenses involved minors or holiday-related conduct.

60. Plaintiff has a beneficial interest in the performance of this duty: Plaintiff remains on parole and remains subject to Special Condition No. 063 and to "Operation Boo" enforcement cycles. Plaintiff has no plain, speedy, or adequate remedy at law to compel the removal of the void condition or the implementation of nexus-check procedures.

61. Plaintiff is therefore entitled to a peremptory writ of mandate directing Defendants to: (a) immediately remove Special Condition No. 063 from Plaintiff's Conditions of Parole, or in the alternative, to conduct and document a written, individualized nexus determination supporting its retention; (b) implement and adhere to mandatory nexus-check procedures requiring written, supervisory-verified findings prior to imposition of any special condition under Reason Code 08; and (c) refrain from imposing or enforcing any parole hold predicated on Special Condition No. 063 against Plaintiff without first conducting and documenting an individualized nexus assessment.

SECOND CAUSE OF ACTION

Declaratory Relief (CCP § 1060)

(Against CDCR, Macomber, Bishop, Urrea, and Noguchi in Their Official Capacities)

62. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

63. An actual, present, and justiciable controversy has arisen and now exists between Plaintiff and Defendants concerning their respective rights, duties, and obligations with respect to: (a) the validity of Special Condition No. 063 as applied to Plaintiff under *People v. Lent* and *In re Ricardo P.*; (b) the lawfulness of the November 1-6, 2024 parole hold; (c) the constitutionality and statutory validity of CDCR's "Operation Boo" policy as applied to parolees whose commitment offenses lack rational nexus to Halloween, minors, or holiday-related conduct; and (d) the constitutional and statutory adequacy of CDCR's procedures (or absence thereof) for imposing and enforcing parole holds that override release.

64. Plaintiff contends, and Defendants dispute, that Special Condition No. 063 is invalid as applied to Plaintiff; that the November 2024 parole hold violated Plaintiff's rights under Article I, §§ 7 and 13 of the California Constitution; that "Operation Boo," as applied to parolees whose commitment offenses lack the required nexus, violates *People v. Lent*; and that CDCR's absence of pre-hold nexus-verification and prompt neutral-review procedures violates due process.

65. Plaintiff seeks a judicial declaration resolving these controversies in his favor under Code of Civil Procedure § 1060. Such a declaration is necessary and appropriate to guide the parties' future conduct and to prevent the recurrence of the constitutional and statutory violations alleged.

THIRD CAUSE OF ACTION

Injunctive Relief

(Against CDCR, Macomber, Bishop, Urrea, and Noguchi in Their Official Capacities)

66. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

67. Plaintiff has no adequate remedy at law to prevent the continued and threatened imposition and enforcement of Special Condition No. 063 or to prevent the future application of "Operation Boo" enforcement to him in a manner that lacks nexus to his commitment offense. Damages alone cannot redress the risk of future arbitrary detention.

68. Plaintiff faces a substantial and concrete threat of repeated injury. Special Condition No. 063 remains in force. "Operation Boo" is an annual event. Plaintiff's parole supervision extends into 2026 and beyond. Absent injunctive relief, Plaintiff will be subject to the same risk of arbitrary detention each Halloween season.

69. The balance of equities and the public interest decisively favor the issuance of injunctive relief. There is no legitimate state interest in imposing or enforcing parole conditions that lack the constitutionally required nexus; the only state interests served are arbitrariness and over-detention, both of which are constitutionally prohibited.

70. Plaintiff is entitled to preliminary and permanent injunctive relief: (a) prohibiting Defendants from enforcing Special Condition No. 063 against Plaintiff; (b) prohibiting Defendants from imposing or enforcing blanket holiday-specific restrictions on parolees whose commitment offenses lack rational nexus to the holiday or to crimes against minors, absent documented individualized assessment; and (c) requiring Defendants to implement constitutionally adequate procedures governing parole holds that override release, including written articulation of the violated condition, documented nexus findings, supervisory pre-hold review, and a prompt neutral probable-cause hearing within forty-eight hours.

FOURTH CAUSE OF ACTION

Violation of California Constitution Article I, § 13 (Unreasonable Seizure)

(Against All Defendants)

71. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

72. Article I, § 13 of the California Constitution protects against unreasonable seizures of the person. This protection is at least coextensive with, and in some respects broader than, the Fourth Amendment to the United States Constitution.

73. Once Plaintiff's DUI-related custodial basis ended and Plaintiff was otherwise eligible for release on November 1, 2024, continued custody required a valid, independent legal basis supported by probable cause. The parole hold placed by Defendant Urrea constituted a new seizure under Article I, § 13. It was imposed at the precise moment of Plaintiff's scheduled release and functioned as the sole but-for cause of Plaintiff's continued confinement for five days.

74. The parole hold lacked probable cause because it was predicated on the purported violation of Special Condition No. 063—a condition that lacked the required nexus to Plaintiff's commitment offense and was therefore invalid as applied to him under *People v. Lent*. Because the underlying condition was invalid as applied, no violation of that condition could supply probable cause, and detention predicated on such a condition was per se unreasonable.

75. Plaintiff seeks declaratory and injunctive relief recognizing the violation of his rights under Article I, § 13, together with any damages cognizable under California law as set forth in the Sixth Cause of Action.

FIFTH CAUSE OF ACTION

Violation of California Constitution Article I, § 7 (Due Process)

(Against All Defendants)

76. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

77. Article I, § 7 of the California Constitution prohibits the deprivation of liberty without due process of law. Plaintiff had a protected liberty interest in being free from jail confinement absent lawful justification and constitutionally adequate procedures.

78. Defendants deprived Plaintiff of liberty by causing and maintaining a parole hold for five days without providing: timely written notice of the specific parole condition allegedly violated; disclosure of the evidence against Plaintiff; a prompt neutral preliminary determination of probable cause; a meaningful opportunity to contest the hold's validity; or a written statement of reasons for continued detention.

79. Defendants' conduct also violates substantive due process. Using parole authority as a tool of arbitrary incarceration—by invoking a holiday-specific curfew condition lacking any rational nexus to Plaintiff's commitment offense or supervision needs, and by using that condition to override release and extend custody for five days—constitutes the arbitrary government action that substantive due process forbids.

80. Plaintiff seeks declaratory and injunctive relief recognizing the violation of his rights under Article I, § 7, together with any damages cognizable under California law as set forth in the Sixth Cause of Action.

SIXTH CAUSE OF ACTION

Violation of the Tom Bane Civil Rights Act (Civil Code § 52.1)

(Against Urrea, Noguchi, CDCR, and Does in Individual and Vicarious Capacity)

81. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

82. California Civil Code § 52.1 prohibits any person, whether or not acting under color of law, from interfering or attempting to interfere by threat, intimidation, or coercion with the exercise or enjoyment by any individual of rights secured by the Constitution or laws of the United States or California.

83. In the context of unlawful seizures and detentions by state actors, the "threat, intimidation, or coercion" element is satisfied by the unlawful detention itself, when accompanied by a specific intent to violate the protected right. *Reese v. County of Sacramento* (9th Cir. 2018) 888 F.3d 1030; *Cornell v. City and County of San Francisco* (2017) 17 Cal.App.5th 766.

84. Defendant Urrea acted with the specific intent to violate Plaintiff's rights under Article I, §§ 7 and 13 of the California Constitution by: (a) placing the parole hold at the precise moment of Plaintiff's scheduled release, when no judicial authority for continued detention existed; (b) predicating the hold on a condition Urrea knew or recklessly disregarded had no nexus to Plaintiff's commitment offense; and (c) maintaining the hold for five days without procedural safeguards.

85. Defendant Noguchi acted with the specific intent to violate Plaintiff's rights by approving a categorical Halloween curfew condition without conducting or documenting any individualized nexus assessment, thereby creating the instrumentality used to effectuate Plaintiff's

unlawful seizure.

86. CDCR is vicariously liable under Government Code § 815.2 for the Bane Act violations of its employees Urrea and Noguchi committed within the scope of their employment.

87. As a direct and proximate result of Defendants' conduct, Plaintiff suffered the loss of liberty for five days, lost wages, professional reputational harm, severe emotional distress, fear for personal safety, humiliation, and other compensable damages.

88. Plaintiff is entitled to recover compensatory damages, statutory damages, punitive damages against the individual Defendants, civil penalties as authorized by Civil Code § 52.1, and reasonable attorney's fees, expert fees, and costs under Civil Code § 52.1(i) and Code of Civil Procedure § 1021.5. *See Venegas v. County of Los Angeles* (2004) 32 Cal.4th 820.

SEVENTH CAUSE OF ACTION

False Imprisonment

(Against Urrea, Noguchi, CDCR, and Does)

89. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

90. Defendant Urrea intentionally caused Plaintiff to be confined by placing a parole hold that prevented Plaintiff's release on November 1, 2024.

91. The parole hold lacked lawful privilege because it was based on a purported violation of Special Condition No. 063—a condition that lacked the required nexus to Plaintiff's commitment offense and was therefore invalid as applied to him. A hold predicated on an invalid

condition cannot constitute lawful detention.

92. Because the Halloween condition was void ab initio for lack of nexus under *People v. Lent*, Defendant Urrea's enforcement of that condition via a parole hold was not a discretionary policy decision but a ministerial failure to follow the mandatory legal prerequisites for detention. Immunity for discretionary acts under California Government Code § 820.2 does not shield officials who act outside the scope of their legal authority. *Caldwell v. Montoya* (1995) 10 Cal.4th 972.

93. Plaintiff did not consent to the confinement. Plaintiff was confined from November 1 through November 6, 2024—five days of unlawful imprisonment.

94. CDCR is vicariously liable under Government Code § 815.2 for the false imprisonment committed by its employees within the scope of their employment.

95. As a direct and proximate result of Defendants' conduct, Plaintiff suffered loss of liberty, emotional distress, lost wages, and other compensable damages.

EIGHTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

(Against Urrea, Noguchi, CDCR, and Does)

96. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

97. Defendants' conduct—using a baseless parole hold to keep Plaintiff jailed for five days without process, based on a condition with no nexus to his offense, with reckless disregard for

Plaintiff's safety and dignity, with knowledge that Plaintiff was confined with a dangerous and menacing cellmate, and with knowledge that the hold was sabotaging Plaintiff's first day of new employment—was extreme and outrageous, exceeding all bounds of conduct tolerated in a civilized society.

98. Defendants intended to cause distress or acted with reckless disregard of the probability of causing distress.

99. Plaintiff suffered severe emotional distress, including fear for his safety, anxiety, humiliation, and psychological trauma from menacing confinement conditions and the arbitrary nature of his detention.

100. Defendants' conduct was a substantial factor in causing Plaintiff's distress.

101. CDCR is vicariously liable under Government Code § 815.2 for the intentional infliction of emotional distress committed by its employees within the scope of their employment.

NINTH CAUSE OF ACTION

Negligent Violation of Mandatory Duty (Gov. Code § 815.6)

(Against CDCR)

102. Plaintiff incorporates by reference all preceding paragraphs as though fully set forth herein.

103. Government Code § 815.6 provides that a public entity is liable for injury proximately caused by its failure to discharge a mandatory duty imposed by enactment that is designed to protect against the risk of a particular kind of injury, if the injury suffered is of the

kind the enactment was designed to prevent.

104. California Penal Code § 3053 and 15 California Code of Regulations § 2616 impose on CDCR a mandatory duty to ensure that special parole conditions are reasonably related to the parolee's commitment offense, criminal conduct, and/or future criminality. These enactments are designed to protect parolees from the risk of arbitrary, non-nexus restrictions on liberty and the cascading detention harms that follow from enforcement of invalid conditions.

105. CDCR failed to discharge this mandatory duty by imposing and approving Special Condition No. 063 on Plaintiff without the required individualized nexus determination, and by maintaining a system that categorically applies Special Condition No. 063 to PC § 290 registrants without regard to whether their offenses involved minors or holiday-related conduct.

106. The injury Plaintiff suffered—five days of arbitrary detention triggered by enforcement of a non-nexus condition—is precisely the kind of injury the nexus requirement was designed to prevent.

107. CDCR's failure was a substantial factor in causing Plaintiff's harm, including loss of liberty, lost wages, emotional distress, and reputational damage.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court enter judgment in his favor and against Defendants, and award the following relief:

A. The issuance of a peremptory writ of mandate under Code of Civil Procedure § 1085 directing Defendants to: (i) immediately remove Special Condition No. 063 from Plaintiff's Conditions of Parole, or in the alternative conduct and document a written

individualized nexus determination; (ii) implement mandatory nexus-check procedures requiring supervisory-verified written findings prior to imposition of any special condition; and (iii) refrain from imposing any parole hold predicated on Special Condition No. 063 against Plaintiff without prior documented nexus assessment;

B. A judicial declaration under Code of Civil Procedure § 1060 that: (i) Special Condition No. 063 is invalid as applied to Plaintiff; (ii) the November 1-6, 2024 parole hold violated Plaintiff's rights under Article I, §§ 7 and 13 of the California Constitution; (iii) "Operation Boo," as applied to parolees whose commitment offenses lack rational nexus to Halloween or crimes against minors, violates the California Constitution and California law; and (iv) CDCR's absence of pre-hold nexus-verification procedures violates due process;

C. Preliminary and permanent injunctive relief: (i) prohibiting Defendants from enforcing Special Condition No. 063 against Plaintiff; (ii) prohibiting Defendants from imposing or enforcing blanket holiday-specific restrictions on parolees whose commitment offenses lack rational nexus to the holiday or to crimes against minors, absent documented individualized assessment; and (iii) requiring Defendants to implement constitutionally adequate procedures governing parole holds that override release, including written articulation of the violated condition, documented nexus findings, supervisory pre-hold review, and a prompt neutral probable-cause hearing within forty-eight hours;

D. A preliminary injunction within sixty days of this filing prohibiting CDCR from enforcing "Operation Boo" or any similar holiday-specific restrictions against Plaintiff pending trial, to prevent irreparable harm during the 2026 Halloween enforcement cycle;

E. Compensatory damages against Defendants Urrea, Noguchi, and CDCR in an amount according to proof, including damages for loss of liberty, lost wages, professional

reputational harm, employment jeopardy, and emotional distress;

F. Statutory and civil penalty damages under Civil Code § 52.1 in an amount according to proof;

G. Punitive damages against Defendants Urrea and Noguchi in their individual capacities in an amount sufficient to punish and deter their reckless disregard of constitutional rights;

H. Reasonable attorney's fees, expert fees, and costs under Civil Code § 52.1(i), Code of Civil Procedure § 1021.5, and any other applicable provision;

I. Pre-judgment and post-judgment interest as allowed by law; and

J. Such other and further relief as the Court deems just and proper.

ELECTION OF TRIAL BY COURT

Plaintiff does not demand a jury trial and elects trial by the court on all issues so triable. (Cal. Const., art. I, § 16; Code Civ. Proc. § 631.)

Dated: June 30, 2026

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff and Petitioner, In Pro Per
1455 Cat Tail Drive
Stockton, CA 95204
(209) 801-4442
bnn.cdl@gmail.com

VERIFICATION

I, BRENDAN NGEHSI NEWANFORBI, declare:

I am the Plaintiff and Petitioner in the above-entitled action. I have read the foregoing Verified Petition for Writ of Mandate and Complaint and know the contents thereof. The matters stated in the foregoing document are true and correct based on my own personal knowledge, except as to those matters which are stated on information and belief, and as to those matters I believe them to be true.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed this 30th day of June, 2026, at Stockton, California.

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff and Petitioner, In Pro Per